

MADDOX PLANNING

Harry Keen
Regent Meadows Ltd
11/02/2025

83 New Kent Road, SE1 6RD: Planning note

Dear Harry

Please note below our summary of the proposed development at 83 New Kent Road, SE1.

The site is located on the north side of New Kent Road in Elephant and Castle, within the London borough Southwark. The site comprises three purpose built connected buildings of between two and four storeys in height with a central courtyard area.

The site was last in occupation by students studying at London South Bank University. The accommodation is arranged as cluster flats with sharing bathrooms and kitchens. The property has laid vacant since 2020.

The site is not subject to any specific policy designations except for the building being identified as a locally listed building alongside No.81 New Kent Road which is immediately adjacent to the west of the site. To confirm, the site is not within a Conservation Area, nor is the building statutorily listed. There are several trees located at the front of the site across both 81 and 83 New Kent Road which form a group of trees (Plane, Sycamore, Chestnut) that are subject to a Tree Preservation Order. As a result, any works to remove or prune the trees would require approval from the Council. The site is also located within an area identified for tall buildings, but also the London view management framework and Borough view consultation area.

I note advice has been obtained with regards to the proposed reconfiguration of the existing cluster arrangement accommodation to studio units with retention of communal amenity. Town Legal have advised the proposed works will not require planning permission and we accept the view Town Legal has reached on this.

Alongside the principle conversion works noted above, it is your intention to undertake a number of enhancements to the existing building, these principally relate to the replacement of windows (like for like) and external doors. In addition to this, you are proposing to install two separate lifts into the proposal which will alter the internal layout and external appearance at roof level. You are also seeking to enhance the sustainability and energy efficiency of the building through the provision of air source heat pumps on several flat roofs.

Although most amends listed above would not attract a planning application, the lifts, air source heat pumps and associated plant potentially would and is subject to final confirmation on design. With regards to the 'Community Infrastructure Levy' ('CIL') liability, the development will only be liable where it results in a net gain over 100sqm of floorspace. Internal amendments are not subject to CIL. On the basis of the proposals sought, it is unlikely that CIL will be triggered, but this is subject to final confirmation on the design.

I note a fire consultant has been engaged to advise on the strategy with the lifts alongside any other fire related changes. Once a full scope of works is confirmed, we will review the validation checklist and confirm the likely list of technical reports.

In summary, the proposals outlined above would appear to be non-contentious, but I must caveat, getting the design right will be important. Although the local listing primarily relates to the façade of the building fronting 83

New Kent Road, it would still be beneficial to obtain heritage advice and a subsequent note to support any planning submission. It is worth noting however, as the building is only locally listed, listed building consent is not required for any works.

It is also our understanding you are exploring an additional option of adding a roof terrace to the northern most block, alongside the relevant plant space. There is an existing stair access to this space which will be utilised. It is likely that any key considerations for the use of this space will relate to the impact of its use in terms of noise, safety also any actual and perceived overlooking and loss of privacy. This will primarily be dealt with by way of the submission of plans and visuals, but the Council may seek further comfort through the submission of a noise report. There are examples of similar roof spaces being used for amenity space in the surrounding area. On review, it is noted the community roof terrace at Melbway House to the northwest is subject to a planning condition restricting the hours of use and I anticipate any application on this site would be subject to similar.

It is also important to highlight that the Council may seek, in connection with the use of the amenity space, an understanding on the use of the building in terms of the occupiers who would utilise the space. It could also raise similar questions in relation to the operational development discussed further above, albeit this would be beyond the scope of the applications sought. In such instances, we will defer to Town Legal's advice on the appropriate proposed use.

In terms of timescales, the site area is under 1ha, and the development would not result in over 1,000sqm of additional floorspace, as such, any forthcoming application would be classed as a 'minor' and would be subject to the standard eight week statutory timescales. It is unlikely that a pre-application would be required given the minor nature of the works.

Yours sincerely

A handwritten signature in black ink that reads "Matt Hill". The signature is written in a cursive, slightly stylized font.

Matt Hill
Planning Director (MRTPI)

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